

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: CHARLES S TREAT
HEARING DATE: 06/18/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10
Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

LINE 3 Levinson v Ho

This case has been dismissed. Still lingering in the file, however, is a lis pendens which is no longer operative, which defendant Ho moves to expunge. The motion is unopposed, and it is **granted**.

1. 8:31 AM CASE NUMBER: C25-01059

CASE NAME: SHELLEY MYTHEN VS. CARY JARVIS

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

See Line 8 below. The case management conference is **continued** to December 16, 2026 at 8:30 a.m.

2. 10:00 AM CASE NUMBER: MSC21-01952

CASE NAME: TARA STARR VS. THOMAS STARR

SETTLEMENT CONFERENCE (WITH SETTLEMENT MENTOR)(ALL PARTIES AND COUNSEL ARE REQUIRED TO APPEAR IN PERSON)

FILED BY:

TENTATIVE RULING:

Parties and counsel to **appear in person** for settlement conference.

3. 9:00 AM CASE NUMBER: C23-02179

CASE NAME: DMITRIY SHORNIKOV VS. LAKE ALHAMBRA PROPERTY OWNERS ASSOCIATION

HEARING ON SUMMARY MOTION JUDGMENT

FILED BY: SHORNIKOV, DMITRIY

TENTATIVE RULING:

Before the Court is Plaintiff Dmitriy Shornikov's motion for summary judgment or in the alternative summary adjudication. The motion relates to Plaintiff's verified complaint for violations of Civil Code §§ 5103(b)(1), 5103(b)(2), 5103(e), 5105(a), and 5115(c). The motion also seeks adjudication of Defendant Lake Alhambra Property Owners' Association's eighth affirmative defense under Civil Code § 5145(a).

By his motion, Plaintiff seeks to void the 2023 Board of Directors election. Plaintiff also seeks statutory damages and attorneys' fees and costs.

As a threshold issue, Defendant argues that Plaintiff's motion is procedurally defective in several respects: omission of a statement of facts in the memorandum of points and authorities, in violation of California Rule of Court 3.1113(b); facts in the memorandum that are not captured in the separate statement as required by Code of Civil Procedure § 437c(b)(1); and failure of the separate statement to comply with California Rule of Court 3.1350 in several respects.

First, the Court notes that: "[a]ll material facts must be set forth in the separate statement. 'This is the Golden Rule of Summary Adjudication: if it is not set forth in the separate statement, *it does not exist*. Both the court and the opposing party are entitled to have all the facts upon which the moving party bases its motion plainly set forth *in the separate statement*.'" (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337, italics in original, superseded by statute on other grounds, as stated in *Certain Underwriters at Lloyd's of London v. Superior Court* (1997) 56 Cal.App.4th 952, 957, fn. 4.) The Court also notes that it has the discretionary power to deny summary judgment on the basis of failure to comply with California Rule of Court 3.1350. (*Truong v. Glasser* (2009) 181 Cal.App.4th 102, 118.)

Notwithstanding the above defects, the Court reaches the merits of Plaintiff's motion. Counsel for Plaintiff is cautioned that future motion practice must comply with the California Rules of Court and Civil Procedure.

For the following reasons, the motion is **denied**.

Request for Judicial Notice

The Association requests Judicial notice of Assembly Bill 502 and the Verified Complaint in the matter *Shornikov v. Lake Alhambra Property Owners Association*, Contra Costa County Superior Court, Case No. MSL19-08297. Plaintiff objects to the request.

An assembly bill constitutes cognizable legislative history of which the Court may take judicial notice.

(*People ex rel. Schlesinger v. Sachs* (2023) 97 Cal. App. 5th 800, 813 [citing *Kaufman & Broad Communities, Inc. v. Performance Plastering, Inc.* (2005) 133 Cal.App.4th 26, 31-34, and Evid. Code §§ 451(a), 452(c)].)

The Court may also take judicial notice of the existence of the Verified Complaint in L19-08297, but not the truth of the allegations asserted therein. (*Day v. Sharp* (1975) 50 Cal.App.3d 904, 914, 918; Evid. Code §§ 452(a), 452(d), 453.) Subject to that limitation, the request is **granted**.

Legal Standard

Code of Civil Procedure § 437c(c) provides, in relevant part:

The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.

Section 437c(p)(1) provides:

A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.)

Analysis

This case arises out of the Association's 2023 Board of Directors election, wherein all candidates were declared elected to the Board by acclamation. Plaintiff alleges that with respect to that election, the Association violated Civil Code §§ 5103(b)(1), 5103(b)(2), 5103(e), 5105(a), and 5115(c). Defendant argues that notwithstanding any technical failure to comply with the statutory requirements of those sections, the election results would have been the same, precluding the Plaintiff from voiding the results of that election.

A homeowner's association has been described as a quasi-government entity that must be held to a high standard of responsibility. (*Cohen v. Kite Hill Community Assn.* (1983) 142 Cal.App.3d 642, 651.) "The business and governmental aspects of the association and the association's relationship to its members clearly give rise to a special sense of responsibility upon the officers and directors . . . This special responsibility is manifested in the requirements of fiduciary duties and the requirements of

due process, equal protection, and fair dealing.’ [Citation.].” (*Ibid.*) To that end, an association must comply with the applicable standards set forth in the Davis-Stirling Act and must operate in accordance with its own governing documents. To the extent of any conflict between an association’s governing documents and the Act, the Act “shall prevail” (§ 4205, subd. (a)), and to the extent of any conflict between an association’s CC&Rs and bylaws, the CC&Rs “shall prevail” (§ 4205, subd. (c)).

Here, Plaintiff has met his initial burden to show violations of Civil Code §§ 5103(b)(1), 5103(b)(2), 5103(e), 5105(a), and 5115(c). It is not materially disputed that the Association failed to comply with the 90-day notice requirement of § 5115(a) (UMF 1.1), that the Association does not have a record of sending a written reminder under § 5103(b)(2) (UMF 2.1), that the Association does not have a record of an agenda reflecting the candidates’ names as required by § 5103(e) (UMF 3.1), and that it did not distribute ballots under § 5115 (c) (though the Association argues that the traditional balloting process was not warranted for the 2023 election) (UMF 5.1).

The Association disputes that it violated Civil Code § 5105(a). (DMF 4.1)

Plaintiff meets his initial burden on violations of the Davis-Stirling Act for §§ 5103(b)(1), 5103(b)(2), 5103(e), and 5115(c). Assuming *arguendo* that the Association also violated Civil Code § 5105(a), the dispositive issue on this motion is whether there is a genuine dispute of material fact with respect to whether any procedural noncompliance with the Act affected the results of the 2023 election.

Civil Code § 5145(a) provides:

A member of an association may bring a civil action for declaratory or equitable relief for a violation of this article by the association, including, but not limited to, injunctive relief, restitution, or a combination thereof, within one year of the date that the inspector or inspectors of elections notifies the board and membership of the election results or the cause of action accrues, whichever is later. If a member establishes, by a preponderance of the evidence, that the election procedures of this article, or the adoption of and adherence to rules provided by Article 5 (commencing with Section 4340) of Chapter 3, were not followed, a court shall void any results of the election unless the association establishes, by a preponderance of the evidence, that the association’s noncompliance with this article or the election operating rules did not affect the results of the election. The findings of the court shall be stated in writing as part of the record.

While Plaintiff argues in his moving papers that the number of candidates in elections has been greater than the number of open seats, the Association has adduced evidence that in seven out of ten election cycles, the number of nominations did not exceed the number of available seats. (See e.g. Schandelmier Declaration at ¶ 4(a)-(m).) Defendant has also adduced evidence that on occasions where the Association extended the deadline to attract more candidates, no additional candidates came forward. (See *id.* at ¶ 4(e) and 4(g).) Defendant also adduced evidence that no members have come forward to notify the Board that they would have submitted a nomination for candidacy in 2023 had the notice period been the full 90 days, or had they received a reminder notice before the deadline, or had the candidates been listed on the agenda. (Armanini Decl. at ¶ 18(a)-(d).)

The basic problem here is that summary judgment is not a usable procedure for the dispositive issue at hand. The statutory violations are largely either already adjudicated or readily admitted. Hence, the key issue is the one on which Plaintiff seeks summary judgment, namely the viability of the

Association's affirmative defense that the violations did not affect the results of the 2023 election. Both sides seek to argue that issue by reference to what did or didn't happen in other elections in other years. The facts of those other elections are undisputed. But the problem is that getting from those facts, to a conclusion as to the results of the 2023 election, requires an inference by analogy. Plaintiff seeks to draw the inference that because there have sometimes been elections with more candidates than seats, that would (or might) have occurred in 2023 with proper notice and opportunity. The Association seeks to draw the inference that because in most elections there were no excesses of candidates, that would (or might have) occurred in 2023 even with proper notice and opportunity. It is a dicey enterprise to base summary judgment on inferences from known historical facts of different events, even on much clearer records than this one. And here, the historical facts could plausibly give rise to either of the two competing inferences, with the choice between them left up to the trier of fact at trial (though of course giving heed to the point that one side bears the burden of proof and the other side doesn't).

In light of the above, the Court concludes that there is a genuine dispute of material fact with respect to the Association's statutory defense under Civil Code § 5145.

Evidentiary Objections

The Court rules only on those objections material to the Court's ruling on the motion for summary judgment. (CCP § 437c(q).)

The court **overrules** all of Plaintiff's objections as raised in Plaintiff's "Evidentiary Objections to Defendant's Additional Material Facts." Plaintiff directs his objections to facts contained in the Defendant's Separate Statement. These facts are not evidence. California Rules of Court, rule 3.1354 requires a party to object to items of evidence. Any objections to evidence must comply with California Rules of Court, Rule 3.1354. Furthermore, California Rules of Court Rule 3.1354(b) dictates the format in which evidentiary objections must be submitted: "All written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion. Objections on specific evidence may be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement." Plaintiff's objections are procedurally defective.

Future Course of the Litigation

The Court takes the opportunity to comment on where this case may go from here. The challenged election occurred in 2023. The issue is not moot because the board elected then is still in office. The 2024 election did not occur for lack of a quorum; the Court does not see any indication from the parties why there was no intervening election in 2025. Presumably, however, an election is due to be held in 2026, more likely than not before any bench trial will occur in this case.

The Court does not know why, with little dispute as to the legal violations, no debate over how to conduct future elections, and no dispute as to historical facts, it has taken two and a half years for this case to get even to the point of an unsuccessful summary judgment motion. However – and recognizing that, despite Plaintiff being a board member, these parties may not be on very good speaking terms – the Court urges that they begin thinking about how and when to proceed with the next election rather than continuing to debate about the last one.

4. 9:00 AM CASE NUMBER: C23-02709
CASE NAME: MELISSA PALMER VS. DIGGER'S DINER CONCORD, INC.
*HEARING ON MOTION IN RE: QUASH SERVICE OF AMENDED SUMMONS AND SECOND AMENDED COMPLAINT
FILED BY: DIGGER'S DINER CONCORD, INC.
TENTATIVE RULING:

This motion to quash service is expressly unopposed, because it has been **mooted** by subsequent service. The attorneys in this case need to start behaving more professionally.

5. 9:00 AM CASE NUMBER: C24-03183
CASE NAME: NAVYA SHARMA VS. RAVINDER SHARMA
*HEARING ON MINOR'S COMPROMISE RE: DIVA SHARMA
FILED BY:
TENTATIVE RULING:

The proposed minor's compromise is **approved**.

6. 9:00 AM CASE NUMBER: C24-03183
CASE NAME: NAVYA SHARMA VS. RAVINDER SHARMA
*HEARING ON MINOR'S COMPROMISE RE: AYAAN SHARMA
FILED BY:
TENTATIVE RULING:

The proposed minor's compromise is **approved**.

8. 9:00 AM CASE NUMBER: C25-01059
CASE NAME: SHELLEY MYTHEN VS. CARY JARVIS
HEARING ON DEMURRER TO: RE 1ST AMENDED COMPLAINT
FILED BY: JARVIS, CARY
TENTATIVE RULING:

Defendants' demurrer to the First Amended Complaint is **sustained with leave to amend**, and defendants' motion to strike is **granted with leave to amend**.

Defendants shall prepare a proposed order and serve and file a notice of entry of order. Plaintiff shall have 30 days from notice of entry of order to file an amended complaint.

Summary of Allegations and Procedural History

Plaintiff Shelley Mythen filed her original complaint on April 15, 2025, against Ida Alfaro, Donna Willis, Cary Jarvis, Lesli Vandergroen, the Estate of Daisy JoAnn Jarvis, and Does 1 through 10, and a first amended complaint (FAC) on February 2, 2026.

The FAC alleges that on July 18, 2017, Daisy JoAnn Jarvis, who sometimes used the name Ida Alfaro, hired plaintiff to resolve numerous code, building, and government agency violations affecting the real property located at 2750 Penny Lane, Brentwood, California. (FAC ¶ 17.) Plaintiff alleges that Daisy had received multiple notices of violation that had gone unaddressed for approximately seven months, placing the property at imminent risk of forfeiture, and that plaintiff successfully resolved all of the violations by working with Contra Costa County Code Enforcement and other agencies. (FAC ¶¶ 19-20.)

On March 21, 2018, plaintiff moved into a cottage on the property (the Cottage) pursuant to a written month-to-month rental agreement with Daisy at a rate of \$400 per month, and plaintiff alleges she has maintained continuous residence and possession since that time. (FAC ¶ 21.) Plaintiff alleges that she and Daisy developed a close personal relationship, spending approximately ten hours a day together, and that plaintiff continued to perform services for Daisy on an as needed basis. (FAC ¶ 22.)

Plaintiff alleges that on December 1, 2021, in recognition of her services and their friendship, Daisy made an oral gift of the Cottage and surrounding five acres to plaintiff. (FAC ¶ 23.) Plaintiff further alleges that on December 6, 2021, she and Daisy went to the Contra Costa County Recorder's Office to transfer half of the property to plaintiff but were told that the ten-acre parcel could not be split under local regulations. (FAC ¶ 24.) On December 12, 2021, Daisy executed a written lifetime lease agreement (Lifetime Lease) granting plaintiff the right to occupy the cottage and surrounding five acres for the remainder of plaintiff's natural life. (FAC ¶ 25.) The Lifetime Lease provided for monthly payments of \$400 toward rent and property taxes, made plaintiff responsible for electricity only if the monthly solar bill exceeded \$500, and granted plaintiff rights to have guests, make modifications to the residence, perform land improvements, sublease portions of the residence, keep pets, and store vehicles and other personal property on the premises. (FAC ¶ 26.) Plaintiff alleges that after the Lifetime Lease was executed, Daisy erected a metal post on the property to delineate the areas of the parties' respective interests. (FAC ¶ 27.) Plaintiff alleges that from December 2021 until Daisy's death she occupied the cottage and surrounding five acres under the Lifetime Lease and made improvements including new flooring, dual-pane windows, a remodeled bathroom, a second bedroom, and landscaping. (FAC ¶ 28.)

Daisy died on October 29, 2024. (FAC ¶¶ 6, 28.) Plaintiff alleges that following Daisy's death, Cary Jarvis and Lesli Vandergroen took over as managers of the property, claiming to act on behalf of the Brentwood Family Estate Trust. (FAC ¶ 29.) Plaintiff alleges that defendants take the position that the property has been held by the Brentwood Family Estate Trust since 1996, with B.M. Boyer and Floyd Cochran or their successor trustees as trustees, and that Daisy did not have legal authority to grant plaintiff a lifetime lease. (FAC ¶ 30.) Plaintiff also alleges the trust may have expired after twenty to twenty-five years (in 2020), which would have caused the property to revert to Daisy before the Lifetime Lease was executed in 2021. (FAC ¶ 31.)

Plaintiff alleges that since January 2025 defendants have refused to honor the Lifetime Lease and have instead treated plaintiff as a month-to-month tenant under the 2018 rental agreement, sending her numerous unilateral notices changing the terms of her occupancy. (FAC ¶ 32.) These notices are alleged to include limiting plaintiff to one vehicle and charging \$100 per month for each additional vehicle, prohibiting plaintiff from having a support animal after her dog of twenty-one years died in March 2025, restricting plaintiff to one guest for a total of one and a half days per month, requiring

plaintiff's roommate to pay rent directly to defendants, forcing plaintiff to remove a washer and dryer she had purchased for \$3,000, prohibiting plaintiff from maintaining landscaping around the cottage, increasing plaintiff's power bill from approximately \$150 per month to over \$887 per month without justification, forcing plaintiff to remove a hot tub she had purchased for \$2,500, and prohibiting plaintiff from completing planned renovations on which she had spent over \$3,000 in materials. (FAC ¶ 33, subparagraphs (a) through (i).) Plaintiff alleges that as a result she has been forced to sell vehicles and other property below market value at a loss of approximately \$25,000, and has incurred additional storage costs of approximately \$650 per month for items she was forced to remove from the property. (FAC ¶¶ 34-35.) Plaintiff alleges that these actions were designed to force her from the property and constitute unlawful harassment and the use of self-help measures. (FAC ¶ 36.)

Plaintiff alleges that defendants' conduct has caused her to suffer severe emotional distress, including anxiety, depression, sleep disturbances, headaches, muscle tension, fatigue, digestive issues, and increased heart rate and blood pressure. (FAC ¶ 37.) Plaintiff further alleges that she exhibits symptoms of clinical depression, including persistent sadness, loss of interest in daily activities, feelings of hopelessness and worthlessness, fatigue, changes in appetite and weight, social withdrawal, difficulty concentrating, and at times suicidal thoughts, all as a direct result of defendants' conduct since January 1, 2025, and that she is currently treating with medical and mental health providers. (FAC ¶¶ 38-39.) Plaintiff alleges that defendants' acts were done knowingly, willfully, and with malicious intent and conscious disregard of plaintiff's rights, entitling her to punitive damages under Civil Code § 3294. (FAC ¶ 40.)

Based on these allegations, plaintiff asserts six causes of action. The first seeks to quiet title against any adverse claims of defendants. (FAC ¶¶ 41-42.) The second seeks a declaration that plaintiff and defendants each own a one-half interest in the property. (FAC ¶¶ 43-47.) The third seeks physical partition of the ten-acre parcel. (FAC ¶¶ 48-50.) The fourth alleges civil harassment based on a pattern of unlawful demands, notices, and unilateral changes to plaintiff's occupancy rights designed to force her to vacate. (FAC ¶¶ 51-55.) The fifth alleges intentional infliction of emotional distress based on defendants' extreme and outrageous conduct. (FAC ¶¶ 56-60.) The sixth alleges negligent infliction of emotional distress based on defendants' breach of a duty of good faith and fair dealing. (FAC ¶¶ 61-65.)

Plaintiff seeks a judgment that plaintiff is a one-half owner of the property, or in the alternative that she be granted a life estate in the property and surrounding five acres, a declaration that plaintiff and defendants each own a one-half interest in the property, compensatory, general, and special damages according to proof, punitive damages, attorney's fees, and costs of suit. (Prayer, ¶¶ 1-7.)

The FAC attaches six exhibits. Exhibit 1 is the legal description of the property. Exhibit 2 is a January 30, 2018 letter from Daisy commending plaintiff's work in resolving code violations, signed as Project Manager. Exhibit 3 is the handwritten month-to-month rental agreement dated March 21, 2018. Exhibit 4 is a November 19, 2021 letter from Daisy identifying plaintiff as residing at the property, signed by Daisy as both Ida Alfaro, Trustee, and JoAnn Jarvis, Manager. Exhibit 5 is the December 12, 2021 Lifetime Lease Agreement. Exhibit 6 is the Brentwood Family Estate Trust instrument dated November 1, 1995. Exhibits 3, 5, and 6 are key to the issues raised in the demurrer, and are described in greater detail below.

On February 27, 2026, defendants filed the instant demurrer and a motion to strike. Defendants demur to each of the six causes of action on the ground that none states facts sufficient to constitute a cause of action, and separately demur on the ground that the Estate of Daisy JoAnn Jarvis is not a legal entity capable of being sued and that all causes of action against Ida Alfaro and Donna Willis in their individual capacities fail because neither ever held the property individually. The demurrer rests primarily on the contention that Daisy JoAnn Jarvis held no legal or equitable interest in the property at the time of the alleged oral gift or the Lifetime Lease, because record title has been held since 1996 by the trustees of the Brentwood Family Estate Trust. Defendants request judicial notice of a copy of the Trust Transfer Deed recorded November 6, 1996, as document number 96-210226. (Exh. A. to Motion.) Defendants move to strike causes of action numbers four, five, and nine from the FAC caption on the ground that they are not pleaded in the body of the FAC, and to strike the footer phrase "in the alternative a life estate" appearing on pages one through nine on the same ground.

On June 5, 2026, plaintiff filed an opposition and request for leave to amend. Plaintiff concedes the Estate of Daisy JoAnn Jarvis is improperly named and proposes amendment to substitute parties. As to the substantive claims, plaintiff argues she does not seek fee ownership but a lifetime possessory interest under the Lifetime Lease Agreement, which she contends is a sufficient property interest to support quiet title, declaratory relief, and partition. Plaintiff argues the 1996 deed does not resolve whether Daisy had authority to bind the trust to the Lifetime Lease, whether as trust manager, by delegation, by course of dealing, or because the trust may have expired by its own terms before 2021. As to civil harassment and emotional distress, plaintiff argues a genuine dispute exists as to which agreement governs, and that if the Lifetime Lease controls, defendants' enforcement of the 2018 restrictions serves no legitimate purpose and constitutes harassment and outrageous conduct. Plaintiff alternatively requests leave to file a second amended complaint adding factual allegations regarding Daisy's authority, the trust's expiration, and the cumulative effect of defendants' conduct.

On June 11, 2026, defendants filed a reply asserting various new arguments, including that the Brentwood Family Estate Trust defeats plaintiff's claims because the trust is irrevocable, grants contracting authority only to the Board of Trustees, and does not permit a trust manager to grant a lifetime lease. Defendants argue the trust document attached to the FAC controls over contrary allegations. They further argue that the Lifetime Lease, by instructing trustees to honor it after Daisy's death, shows the parties understood Daisy was not a trustee and did not hold title. Defendants assert that plaintiff's proposed amendments regarding trust expiration and Daisy's authority are speculative and unsupported by the FAC or its exhibits, and so the demurrer should be sustained without leave to amend.

Having reviewed the FAC, the attached exhibits, and the parties' arguments, the Court sustains the demurrer with leave to amend, and grants the motion to strike with leave to amend, as detailed below.

Legal Standards

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not

be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) "Immaterial" or "irrelevant" matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

Meet and Confer

Before filing a demurrer or motion to strike, the demurring or moving party shall meet and confer with the party who has filed the pleading and shall file a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41, subd. (a); 435.5, subd. (a).)

Defendants' counsel Richard Hobin states that on February 26, 2026, he engaged in a telephonic meet and confer with plaintiff's counsel David M. Livingston, to discuss the pleading deficiencies in plaintiff's first amended complaint, and that the parties were unable to reach a resolution. (Hobin Decl. ¶¶ 5-6.)

Judicial Notice

"Judicial notice is the recognition and acceptance by the court, for use by the trier of fact or by the court, of the existence of a matter of law or fact that is relevant to an issue in the action without requiring formal proof of the matter." (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1374.)

Defendants' Request for Judicial Notice of the Trust Transfer Deed recorded November 6, 1996, as Document Number 96-210226 in the Official Records of Contra Costa County, is **granted in part.**

The Court takes judicial notice only of the fact that the Trust Transfer Deed was recorded, the date of its recording and execution, the parties to the transaction reflected in the recorded document, the document's legally operative language, and any legal effect of the document which is clear from its face, namely that as of November 6, 1996, Beryl J. Jarvis and D. Jo Ann Jarvis, as Trustees of the Jarvis Family Trust dated December 30, 1985, conveyed the Real Property to the Trustees, in joint tenancy, of the Brentwood Family Estate Trust, a trust dated November 1, 1995, whose trustees were then identified as B.M. Boyer and Floyd Cochran. (See *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265, disapproved on other grounds in *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 939, fn. 13.)

The Court does not take judicial notice of the state of title as of December 2021, the continued

existence of the Brentwood Family Estate Trust at that time, the identity of any trustees then serving, or whether Daisy JoAnn Jarvis had authority to execute the Lifetime Lease. The Trust Transfer Deed says nothing about any of these matters. Defendants refer to B.M. Boyer and Floyd Cochran “or the successor trustees” but nothing in the deed identifies any successor trustees or speaks to whether the trust was still in existence after 1996.

Misjoinder of Parties

Defendants demur to the FAC on the ground that the Estate of Daisy JoAnn Jarvis is not a legal entity capable of being sued. Citing *Tanner v. Best's Estate* (1940) 40 Cal.App.2d 442, 445, they argue that an estate is neither a natural nor an artificial person but merely a name for the sum total of a decedent's assets and liabilities, and that for a civil action to be prosecuted there must be some existing entity against whom the court's judgment can operate. Defendants argue that an estate has no capacity to sue or be sued or to defend an action so the estate is misjoined.

Plaintiff responds that the proper parties are the individual trustees of the Brentwood Family Estate Trust named in their representative capacities. Plaintiff requests leave to amend to substitute the properly named trustees for the improperly named estate.

The demurrer on misjoinder grounds is **sustained, with leave to amend**.

Claims Against Ida Alfaro and Donna Willis

Defendants demur to all causes of action against Ida Alfaro and Donna Willis on the ground that they are named as individuals when their only connection to the property is their role as trustees of the Brentwood Family Estate Trust. Defendants argue that when property is held in trust the trustee is the real party in interest, and that plaintiff has failed to sue Alfaro and Willis in their representative capacities. Defendants argue there is no factual basis for individual liability against either of them.

The ruling below as to title issues moots this part of the argument at least for now, since the demurrer is being sustained as to all causes of action anyway. If plaintiff amends, however, she should give attention to this nuance.

The First and Second Causes of Action for Quiet Title and Declaratory Relief

Defendants demur to the first cause of action for quiet title and the second cause of action for declaratory relief on the common ground that plaintiff has no cognizable property interest in the property.

As to quiet title, defendants argue that under CCP §§ 760.010 et seq. a plaintiff must allege a present and substantial interest in the property, citing *Lewis v. Superior Court* (1994) 30 Cal.App.4th 1850, 1866, and *Estate of Ford* (2004) 32 Cal.4th 160, 170, and that plaintiff's only interest is a month-to-month tenancy under the 2018 handwritten rental agreement. As to declaratory relief, defendants incorporate their quiet title argument and argue that because plaintiff holds no property interest, there is no actual controversy between the parties within the meaning of CCP § 1060. Both arguments rest on the premise that Daisy JoAnn Jarvis held no legal title or authority to encumber the real

property at the time of the alleged oral gift and the Lifetime Lease, a premise defendants seek to establish through the 1996 Trust Transfer Deed.

As will be discussed, the key to the viability of plaintiff's title or lease claims here is whether the Trust had or had not terminated when Daisy purported to make an oral gift or to enter into a lifetime lease. If we ignore that possibility for the moment, however, it is difficult to see how plaintiff's claims have a leg to stand on. Plaintiff herself attaches the 1996 Trust Transfer Deed and effectively acknowledges that as of 1996, it operated to divest Daisy of ownership of the property. From then on, Daisy was not the property owner; she was only a grantor retaining the right of lifetime occupancy. Indeed, a common purpose of such trust grant arrangements is precisely to preserve the grantors' rights to occupy, while prospectively controlling postmortem disposition and divesting the grantors of the right to give away or sell the property to someone other than the beneficiaries the grantors name in the trust deed.

If the Trust and not Daisy owned the property as of December 2021, then the Court can see no theory (and plaintiff articulates none) under which Daisy would have had the power or right to give part of the property to plaintiff, nor to bind successor owners (the beneficiaries) to a leasehold extending beyond the lessor's own right to occupy the property.

Plaintiff argues in vague terms for how a trustee, or a beneficiary, or a property manager, might have authority to make dispositions of the property. But Daisy was none of these things. She was not a trustee of the trust; she was not designated as a beneficiary of the trust; and other than the custodial role inherent in her actual occupancy of the property, there is nothing granting her a contractual or other role as a "property manager" (such as a professional management company might be) such that she was authorized to act on behalf of the trust, or the beneficiaries, in leasing out or giving away the property in any way that would exceed the duration and scope of her own occupancy.

This is reinforced by a provision in the FAC's own exhibits that defendants point to in their reply as foreclosing plaintiff's claims as a matter of law that Daisy had some unspecified authority to grant a leasehold binding after her death on the property owner (the trust). Article VI, section 6.5 of the trust instrument, FAC Exhibit 6, requires Board majority approval for contracts on behalf of the trust. Defendants argue only the Board acting collectively could have bound the trust to the Lifetime Lease. Less conclusively convincing is the other provision cited in defendants' reply. There is language in the Lifetime Lease, FAC Exhibit 5, in which Daisy directs the appointed trustees to honor the lease upon her death. Defendants argue this shows both parties understood the agreement was not binding on the trust without trustee ratification. If Daisy had full authority, the argument goes, there would have been no need to say anything to the trustees at all. That is a fair point, but it is not the only reasonable reading of the language. A person with authority might still include precautionary language directing successors to honor an agreement, particularly where future disputes are foreseeable. Which reading is correct cannot be decided on demurrer.

That leaves the possibility that the property may have reverted to Daisy upon expiration of the trust. The FAC addresses this only in paragraph 31:

However, Plaintiff has information suggesting that the Brentwood Family Estate Trust may have expired after 20-25 years (potentially in 2020), which would have caused

the Property to revert to Daisy JoAnn Jarvis prior to the execution of the Lifetime Lease. (See a true and correct copy of Brentwood Family Estate Trust dated November 1, 1995 attached and thereby incorporated into this Complaint as Exhibit 6).

The clear reference of this paragraph is to Article 5 of the trust deed:

ARTICLE V.
TERM OF THE TRUST

5.1 This trust shall be established for an initial term of twenty (20) years from the effective date of this Trust. However, the Trustees shall be and hereby are empowered by unanimous decision to terminate it at an earlier date or to renew its operation for additional terms, each not to exceed twenty-five (25) years duration provided, however, that any such extension shall not exceed the maximum term allowed by the rule against perpetuities.

5.2 That as the date for dissolution approaches, if there is no decision to renew the Trust, the Trustees shall proceed timely with the work of termination and dissolution and shall distribute the assets of the trust to the Beneficiaries on a prorata basis according to the units of beneficial interest (shares) which have been issued all and each of them.

If (as appears to be so) plaintiff's theory as to Daisy's authority in 2021 turns on the possibility that the trust terminated in 2016 or 2020, then the hesitant and hypothetical allegations of FAC paragraph 31 are facially inadequate to state such a claim: "information suggesting" that the trust "may have expired". That is not an allegation that in fact this is true, and in fact the trust had expired. "Suggesting" isn't "establishing" or even "alleging"; "may have" isn't "did".

Moreover, even if the trust had expired, it does not readily follow that (as paragraph 31 alleges) that termination "would have caused the Property to revert to Daisy JoAnn Jarvis prior to the execution of the Lifetime Lease". On the contrary, paragraph 5.2 of the trust deed expressly requires that in the event of termination of the trust, the distribution of ownership of the property was to go to *the beneficiaries of the trust* – not the original grantors or present occupants. The beneficiaries of the trust (identified in Article XII) were Cary B. Jarvis, Lesli Van der Groen, and Curtis L. Jarvis. They *did not include* Daisy. Plaintiff articulates no factual or legal theory supporting her speculation that, upon termination of the trust, the property would have reverted to Daisy as grantor. A legal conclusion in paragraph 31, of reversion, cannot withstand demurrer when it is in direct contradiction to the attached document it purports to rely on.

The interesting thing about the present demurrer briefing, however, is that both sides seem to have just forgotten about this possibility of trust termination. Plaintiff's present briefing focuses on a theory as to why Daisy had the right to grant a lease despite not being the property owner (because the trust owned the property). She argues nothing about paragraph 31 or Article V. And for their part, defendants say nothing about whether the trustees did in fact extend the term of the lease, or whether they did in fact act to distribute the ownership to the beneficiaries.

So on the face of the FAC, there is no viable claim alleged for plaintiff's right to claim the property under either an oral gift or a lifetime lease granted by Daisy. The next question is whether there is a prospect plaintiff may be able to amend to cure this problem. The Court does not readily see how that can be done, but does think plaintiff must be given at least one more chance to do so. If she can allege in good faith that the trust did terminate, and also articulate a rationale in which that would result in ownership reversion to the grantor, she may be able to proceed. Alternatively, perhaps she can come up with a sounder theory as to why Daisy, as a non-owner occupant, had the authority to grant a lifetime lease.

The Third Cause of Action for Partition

Defendants contend that a month-to-month tenant lacks standing under CCP § 872.210 to sue for partition, and plaintiff's opposition concedes that this cause of action should be amended or removed. (Opp. p. 11:15-21.) Accordingly, the demurrer to the third cause of action is **sustained with leave to amend**.

The Fourth Cause of Action for Civil Harassment

Defendants demur to the fourth cause of action for civil harassment on the ground that the conduct alleged cannot constitute harassment because each action was taken to enforce the express terms of the 2018 handwritten rental agreement, and therefore served a legitimate purpose within the meaning of CCP § 527.6(b)(3).

The potential viability of this claim turns on whether plaintiff can or can't state a viable claim for the enforceability of her lifetime lease. If she is a rightful tenant, then the actions alleged could well constitute civil harassment in trying to drive her off the property (as well as, potentially, a breach of the lease if the lease is binding on defendants). But if in fact defendants are the proper owner of the property and plaintiff has no right to occupation except on a month-to-month tenancy, then the demands and restrictions alleged on the landlords' part do not seem to exceed their rights as lessors and owners. The viability of this count therefore may turn on whether plaintiff can or can't viably amend counts one and two. The demurrer to this count is therefore **sustained with leave to amend**.

The court questions, however, whether CCP § 527.6 supports a freestanding cause of action for compensatory and punitive damages of the kind plaintiff seeks here. Section 527.6 provides a special proceeding for obtaining a temporary restraining order and injunction prohibiting harassment, with its own notice, hearing, and procedural requirements, including mandatory use of Judicial Council forms, that are distinct from those governing an ordinary unlimited civil action. Plaintiff has not invoked the statute's procedural mechanism or sought injunctive relief. Neither party has addressed this question in their briefing. The court overrules the demurrer on the ground raised and expresses no opinion on the damages question at this time, but the parties may wish to address in future motion practice whether § 527.6 supports the relief plaintiff seeks in this action.

The Fifth Cause of Action for Intentional infliction of Emotional Distress and Sixth Cause of Action for Negligent Infliction of Emotional Distress

Defendants demur to the fifth cause of action for intentional infliction of emotional distress on the

ground that the conduct alleged cannot constitute extreme and outrageous conduct because each action was taken to enforce the express terms of the 2018 handwritten rental agreement. To state a claim for intentional infliction of emotional distress, a plaintiff must allege outrageous conduct by the defendant, the defendant's intention of causing or reckless disregard of the probability of causing emotional distress, the plaintiff's suffering severe or extreme emotional distress, and actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*McClintock v. West* (2013) 219 Cal.App.4th 540, 556.)

It may fairly be debated whether any of the conduct alleged here could really rise to the level of outrageousness required to support an IIED or NIED claim, even if plaintiff does have a leasehold right to occupy under the alleged lifetime lease. But as noted above as to the fourth cause of action, however, there is nothing alleged here that wouldn't fall under the heading of a good-faith assertion of the landlords' rights under a month-to-month arrangement. Accordingly, the demurrer to these counts are likewise **sustained with leave to amend**.

The Court also observes that "negligent" infliction is not a very good fit for the case plaintiff seeks to present. Whether rightful or wrongful, none of the conduct alleged here was "negligent" in the sense of being unintended or accidental.

Motion to Strike

Defendants move to strike four items from the FAC (1) the reference to cause of action number 4, breach of contract, in the caption; (2) the reference to cause of action number 5, breach of the covenant of quiet enjoyment, in the caption; (3) the reference to cause of action number 9, quantum meruit/unjust enrichment, in the caption; and (4) the footer phrase "or in the alternative a life estate" appearing on FAC pages 1 through 9.

Plaintiff has not opposed the motion to strike. Therefore, the motion is **granted with leave to amend**. The caption entries identify causes of action that are not pleaded in the body of the FAC and are thus irrelevant matter within the meaning of CCP § 436. The footer phrase does not correspond to any cause of action pleaded in the body of the FAC and similarly constitutes irrelevant matter.

Leave to Amend

Plaintiff is granted leave to file a second amended complaint within thirty days of notice of entry of this order. Plaintiff has proposed numerous amendments across multiple causes of action. Plaintiff may amend any cause of action addressed in this ruling and correct the party designation defects identified in the demurrer.

9. 9:00 AM CASE NUMBER: C25-02730
CASE NAME: TADEUSZ WYRZYKOWSKI VS. CSW CONSTRUCTION GROUP
*HEARING ON MOTION IN RE: HALT, SEASE & DESIST CRIMES AGAINST JUSTICE
FILED BY:
TENTATIVE RULING:

It is no easy task to try to make out what this plaintiff thinks his case is about. It appears to arise from

a knee injury from slipping on construction sludge, which the plaintiff seeks to escalate into a major official persecution.

The present motion is captioned “Motion to Halt, Sease & Desist Crimes Against Justice”. It is an incoherent rant asserting in conclusory terms that defendant and its attorney have been lying to the Court -- but with neither any coherent narrative, nor any supporting evidence, nor any clear statement of what plaintiff wants the Court to do about it except something like “make them stop”, or maybe convict them of perjury. That’s not how the court system works. The motion is **denied**.

10. 9:00 AM CASE NUMBER: C25-02856
CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV
***HEARING ON MOTION IN RE: ORDER AUTHORIZING ALTERNATIVE SERVICE OF SUMMONS ON**
DEFENDANT ANIL YADAV CCP 413.30
FILED BY: VAN DE POEL & LEVY LLP
TENTATIVE RULING:

This is an action by a law firm to collect contractual legal fees. There are two defendants, a corporation (Yadav Enterprises, Inc.) and an individual (Anil Yadav, apparently the principal of the corporation). The corporation has been served, has counsel, and has been actively defending the case.

Mr. Yadav, however, appears to be ducking service, as shown by the report of the process servers. He has not authorized the corporation’s counsel to accept service on his behalf. It is readily inferable, however, that he is fully aware of the litigation and participating in directing defense efforts.

Plaintiff moves for an order authorizing alternative forms of service, namely email to the corporation’s attorneys, mail to the attorneys, and mail to the individual defendant at his home address. The motion is **granted**.

11. 9:00 AM CASE NUMBER: C25-03201
CASE NAME: DELMARIE THOMAS VS. GALINDO WOODS CONDOMINIUM ASSOCIATION
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: GALINDO WOODS CONDOMINIUM ASSOCIATION
TENTATIVE RULING:

Defendant Galindo Woods Condominium Association’s demurrer to the complaint is **overruled**. Defendant shall file and serve an answer by July 2, 2026.

Plaintiff is suing Defendant for negligence and premises liability. She alleges that the Defendant failed to properly maintain the pipes at the property, which caused pipes to burst and create a water leak and mold in the common area of the condominium, causing the plaintiff to suffer respiratory issues, including asthma.

Defendant demurs to both causes of action based upon the failure to state facts sufficient to constitute a cause of action under Code of Civil Procedure § 430.10(e). On demurrer for failure to state sufficient facts to constitute a cause of action, the Court reviews the factual allegations and must overrule a demurrer if a valid claim is alleged. (See *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th

26, 38.)

Defendant argues that an alleged duty to maintain or repair common areas arises solely from the CC&Rs, and there is no tort claim in absence of facts sufficient to allege the existence of an independent legal duty. Both negligence and premises liability require a showing that the defendant owed a duty of care. (*Chee v. Amanda Goldt Property Management* (2006) 143 Cal.App.4th 1360, 1369.)

Defendant relies on *Sands v. Walnut Gardens Condominium Assn., Inc.* (2019) 35 Cal.App.5th 174 to support its argument that there is no duty to repair a roof and plumbing. In *Sands* the plaintiffs alleged that a pipe broke on the roof and caused water damage in plaintiffs' bedroom. Plaintiffs also claimed that the HOA had done no maintenance on the roof in violation of the CC&Rs. The court of appeal held that plaintiffs had sufficient evidence to support their breach of contract claim, but the evidence did not support a negligence claim. There is no indication that the plaintiffs in *Sands* were suing for personal injuries, and the plaintiffs admitted their breach of contract and tort claims were pretty much the same. (*Id.* at 177.)

Sands is distinguishable. It did not involve personal injuries and is distinguishable on that ground. Further, *Sands* held that there needs to be an independent duty (outside of a contract) to support a negligence claim, but it did not address whether a HOA had a duty where a resident was injured in a common area.

Neither side has provided useful citations addressing when an HOA or condominium association is liable for a personal injury claim. A condominium association is solely responsible for maintaining the common areas of the building and is treated as the landlord of those areas. (*Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 499; see also, Civil Code § 4775(a)(1) [the HOA is responsible for maintaining the common areas].) "Traditional tort principles impose on landlords, including homeowners associations, that function as landlords in maintaining the common areas of a large condominium complex, a duty to exercise due care for the residents' safety in those areas under their control. [Citations.]" (*Ritter & Ritter, Inc. Pension & Profit Plan v. The Churchill Condominium Assn.* (2008) 166 Cal.App.4th 103, 119.) "California cases hold that a homeowners association is liable to a member who suffers injury or damages as a result of alleged negligence of the association in failing to maintain a common area adequately." (*Id.* at 120.)

Here, Plaintiff alleges that Defendant did not properly maintain the common areas, allowing mold to grow, which harmed Plaintiff. These facts are sufficient to show that Defendant had a duty here.

Indeed, it is not difficult to imagine facts where a person is owed no contractual duty under the CCRs, but is nevertheless injured through negligent maintenance. Suppose the injured person is a visitor, guest, subtenant, or vendor, injured by mold, or (on a faster time line) by a burst hot water pipe. Under Defendant's theory, no matter how negligent it might have been, it would owe no duty to anyone not a party to CCRs, and therefore would not be liable to such injury victims. That's against common sense.

In arguing against giving leave to amend, Defendant argues that the business judgment rule bars Plaintiff's claims. In *Lamden v. La Jolla Shores Clubdominium Homeowners Assn.* (1999) 21 Cal.4th 249, 253, the California Supreme Court held that courts provide judicial deference to community association board's decision making for ordinary maintenance decisions when an owner sues to challenge maintenance decisions and certain other criteria are met. This rule of judicial deference is an affirmative

defense. (*Affan v. Portofino Cove Homeowners Assn.* (2010) 189 Cal.App.4th 930, 940.) Further, “[i]t does not create a blanket immunity for all the decisions and actions of a homeowners association.” (*Ibid.*)

Defendant has not shown that the business judgment rule would apply to the tort claims here. Nor has Defendant shown that all criteria necessary to apply the business judgment rule are apparent from the complaint.

Defendant’s demurrer to the negligence and premises liability claims is overruled.

The Court takes judicial notice of the CC&Rs as they are a recorded document and Plaintiff has not objected.

12. 9:00 AM CASE NUMBER: C25-03308
CASE NAME: RAMONA FICKES VS. GHC OF WALNUT CREEK, LLC
***HEARING ON MOTION IN RE: CALENDAR PREFERENCE CCP 36(A)**
FILED BY: FICKES, RAMONA MAY
TENTATIVE RULING:

Before the Court is a motion for preference filed by plaintiffs Ramona May Fickes (by and through her successor-in-interest Ronald Laurence), Dolly Ryan (individually), and Ronald Laurence (individually).

We’ve got a 95-year-old with a history of cancer, and defendants are opposing the motion on the ground that she’s too healthy to qualify? Really?

For the reasons set forth below, Plaintiffs’ motion for preference is **granted**.

Background

Ramona May-Fickes entered into the care of Walnut Creek Skilled Nursing and Rehabilitation Center on August 8, 2024. (Complaint, ¶ 22.) Plaintiffs allege that around early October 2024, when outside hospice care ceased, the care for Ramona deteriorated. (Complaint, ¶¶ 23-25.) On November 13, 2024, staff at the skilled nursing center noticed a discoloration on Ramona’s right leg that they referred to as a rash. (*Id.* at ¶ 29.) On November 19, 2024, Ramona’s family withdrew her from the skilled nursing facility and took her to an emergency room, where she was diagnosed with ischemic pain in her right foot and critical limb ischemia of the lower right extremity. (*Id.* at ¶¶ 31-34.) She was admitted to the hospital that same day and on November 27, 2024, the hospital discharged her to her home with hospice care, and she passed away at home on January 24, 2025. (*Id.* at ¶¶ 35-39.)

On November 12, 2025, the operative complaint in this matter was filed. It alleges claims on behalf of Ramona May Fickes, Ronald Laurence (Ramona’s nephew), and Dolly Ryan (Ramona’s sister). Ronald Laurence is pursuing the claims belonging to the decedent, Ramona May Fickes, as her successor-in-interest. The Complaint alleges causes of action for: (1) elder neglect; (2) elder neglect [enhance remedies]; (3) negligence; (4) fraud [constructive]; (5) tort per se [Penal Code § 368]; (6) intentional infliction of emotional distress; (7) violation of the Patient’s Bill of Rights; and (8) wrongful death. Of those claims, the only one being pursued by Ronald Laurence and Dolly Ryan, in their individual capacities, is the wrongful death claim. All other claims are being pursued on Ramona’s behalf by

Ronald Laurence.

Legal Standard

“A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) [t]he party has a substantial interest in the action as a whole[; and] (2) [t]he health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (Code Civ. Proc., § 36(a).)

A motion made under § 36(a) “may be supported by nothing more than an attorney’s declaration ‘based upon information and belief as to the medical diagnosis and prognosis of any party.’ [Citation.]” (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534, citing Code Civ. Proc, § 36.5 “[a]n affidavit in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party”].) The affidavit may also consist entirely of hearsay and conclusions. (*Id.*)

If the court makes the requisite finding of fact on a motion for preference under Code of Civil Procedure § 36(a), it has no discretion to deny the motion due to the use of the word “shall” in the statute. (See *Peters v. Superior Court* (1989) 212 Cal.App.3d 218, 224-25; see also *Rice v. Superior Court* (1982) 136 Cal.App.3d 81, 89-94.) “Failure to complete discovery or other pre-trial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36.” (*Swaithes v. Superior Court* (1989) 212 Cal.App.3d 1082, 1085.) “The trial court has no power to balance the differing interests of opposing litigants in applying the provision.” (*Ibid.*)

Analysis

Plaintiffs seek preference under Code of Civil Procedure § 36(a) and assert that the age and condition of plaintiff Dolly Ryan meet the requirements such that the motion for preference must be granted. (MPA ISO Motion for Preference, pp. 4-5.) Plaintiffs point out that Dolly Ryan is 95 years old, is frail, was diagnosed with Stage 4 breast cancer in 2013 and had a recurrence in 2015, due to her age she has declined continued imaging to monitor her cancer, she fractured her ankle in 2023 and uses a walker to move around, she has been diagnosed with osteopenia and dyslipidemia, hypertension, and impaired fasting glucose. (MPA ISO Motion for Preference, p. 2; Thomas A. Reyda Decl., ¶¶ 3-6.) The combination of her conditions put Dolly at a significant risk of a stroke, heart attack, or other cardiac event that would prevent her from meaningfully participating in this matter. (MPA ISO Motion for Preference, p. 3; Thomas A. Reyda Decl., ¶ 5.)

Defendants oppose the Motion. They assert that Plaintiff cannot establish entitlement to calendar preference under Code of Civil Procedure § 36(a) and that she has not met her burden of proof under California Rules of Court, rule 3.1335(b). (Opposition, pp. 5-7.) Defendants concede that Dolly Ryan has a substantial interest in the action as a whole, but they contest that Dolly Ryan has not shown that her health is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation. (*Id.* at pp. 5-6.) Defendants argue that Dolly Ryan “must demonstrate, with facts supported by **competent evidence**, that she suffers from a medical condition that makes it likely she will die or become **incapacitated** prior to her case coming to trial without preference.” Defendants assert that “forcing [them] to trial within 120 days under these circumstances will violate their due process rights and severely prejudice their ability to defend themselves.” (*Id.* at pp. 6, 10-13.) Defendants also

argue that Dolly Ryan has not met the burden provided for in California Rules of Court, rule 3.1335(b), and further has failed to show that her health condition is such that her death or incapacity is imminent. (*Id.* at pp. 6-10.)

On reply, Plaintiffs argue that the Thomas A. Reyda declaration is exactly what the Legislature authorized courts to rely on for motions for preference, that Dolly Ryan's condition satisfies the requirements of Code of Civil Procedure § 36(a), and that Defendants' claim of prejudice in the event of the Court granting this motion has no merit as there is no balancing requirement in the analysis of motions for preference. (Reply, pp. 6-8.)

Request for Judicial Notice:

Plaintiffs request the Court to take judicial notice of a CACI female life expectancy table under Evidence Code §§ 452(e), 451(f), and 452(h). The table shows that Dolly Ryan, at the age of 95, would seemingly have a life expectancy of 3.3 years. Plaintiffs' request for judicial notice is GRANTED. (*Behr v. Redmond* (2011) 193 Cal.App.4th 517, 534, fn. 7 ["The information in the CACI life expectancy table is judicially noticeable under Evidence Code section 452, subdivision (h)."].)

Objections to Thomas A. Reyda Declaration:

Defendants object to ¶¶ 3, 4, and 5 of the Thomas A. Reyda declaration.

The objections to ¶¶ 3-5 are identical and the objection relied on is duplicated below:

Speculation, lacks foundation, lacks personal knowledge and/or proper authentication (Evidence Code §§702, 1400, 1401); Asserted Facts are Unsupported by Evidence (Smith v. Covell (1980) 100 Cal.App.3d 947, 958; Upham Co. v. United States Fid. & Guar. (1922) 59 Cal.App. 606, 610); Improper Opinion (Evid. Code § 803; Hawk v. Superior Court (1974) 42 Cal.App.3d 108, 119); Improper Legal Conclusion (Evid. Code § 310; Downer v. Bramet (1984) 152 Cal.App.3d 837); Hearsay (Evidence Code §1200); Improper Medical Opinion (Evidence Code §803.) Declarant is not a medical provider and offers no competent evidence establishing that "[c]ombined these conditions and diagnoses put significant strain on her heart and vascular system. These conditions put Dolly at a significant risk of a stroke, heart attack, or other cardiac event that would prevent her from meaningfully participating in this matter."

(Evid. Objections to Reyda Decl., pp. 2-4.)

Plaintiffs respond that Defendants are conflating Code of Civ. Proc., § 36(a) with § 36(d) and point out that the attorney declaration Plaintiffs submitted is in line with Code of Civ. Proc., § 36.5. (Resp. to Evid. Objections to Reyda Decl., pp. 2-8.)

The Court overrules Defendants' objections to the Reyda Declaration as Code of Civ. Proc., § 36.5 allows the declaration that was filed in support of the instant preference motion. "An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 *may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party.* The affidavit is not admissible for any purpose other than a motion for preference under subdivision (a) of Section 36." (Code of Civ. Proc., § 36.5, italics added.) The relaxed evidentiary requirements for these declarations is why the declaration is not admissible

for any other purpose than to be used in support of a motion for preference.

A motion made under § 36(a) “may be supported by nothing more than an attorney’s declaration ‘based upon information and belief as to the medical diagnosis and prognosis of any party.’ [Citation.]” (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534, citing Code Civ. Proc, § 36.5 “[a]n affidavit in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party”].) The attorney declaration “can consist entirely of hearsay and conclusions.” (*Ibid.*)

Defendants’ objections are OVERRULED.

Objection to Defendants’ Opposition

Plaintiffs object to page 9, lines 8-24 of the Opposition, which purport to provide statistics about the prevalence of the ailments Plaintiffs assert Dolly Ryan suffers from. (Plaintiffs’ Objections to Opposition, p. 2.) Plaintiffs object on the basis of speculation, foundation, personal knowledge, authentication, improper opinion, improper legal conclusion, hearsay, and improper medical opinion. (*Id.* at pp. 2-3.) Plaintiffs’ objections are overruled as Defendants arguments in their Opposition are not evidence that may be objected to. “Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) “The allegations of a brief are not evidence and a brief is not a sworn document.” (*In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515.)

Plaintiffs’ objections are OVERRULED.

Age and Substantial Interest in the Action as a Whole Elements

These two considerations are not at issue here as Defendants have conceded as to their existence. (Opposition, p. 5:26-27.)

The Health of the Party Is Such That a Preference Is Necessary to Prevent Prejudicing the Party’s Interest in the Litigation Element

Plaintiffs argue that the health of Dolly Ryan is such that a preference is necessary to prevent prejudicing her interest in the instant litigation. They support this with the assertions that Dolly Ryan is 95 years old, is frail, was diagnosed with Stage 4 breast cancer in 2013 and had a recurrence in 2015, she fractured her ankle in 2023 and uses a walker to move around, she has been diagnosed with osteopenia and dyslipidemia, hypertension, and impaired fasting glucose. (MPA ISO Motion for Preference, p. 2; Thomas A. Reyda Decl., ¶¶ 3-6.) “These conditions put Dolly at a significant risk of a stroke, heart attack, or other cardiac event that would prevent her from meaningfully participating in this matter.” (MPA ISO Motion for Preference, p. 3; Thomas A. Reyda Decl., ¶ 5.)

Defendants argue that “Plaintiff has utterly failed to establish that she has a life-threatening condition such that she is likely to pass away or become incapacitated before trial.” (Opposition, p. 6.) They argue that her cancer appears to have been in remission for a full decade. (*Id.* at p. 8.) Defendants cite *Looney v. Superior Court* (1993) 16 Cal.App.4th 521, 533, fn. 12, for the proposition that Code of Civil Procedure, § 36(a) “provides ‘an early trial date for persons who, because of their advanced age or serious medical problems, might die or become incapacitated before their case comes to trial.’ ”

(Opposition, p. 5:18-20)

The Court finds that Dolly Ryan’s prior stage 4 cancer diagnosis and its past recurrence, the fact that she is frail, uses a walker, has a history of falling, has issues such as osteopenia and dyslipidemia, hypertension, and impaired fasting glucose, has a risk of a stroke, heart attack, or other cardiac event, and even her very advanced age of 95, when viewed together, support granting Plaintiffs’ Motion for Preference. As cited by Defendants, when “advanced age or serious medical problems” mean that a party “might die or become incapacitated before their case comes to trial,” it is appropriate to grant a motion for preference. (*Looney v. Superior Court* (1993) 16 Cal.App.4th 521, 533, fn. 12.) “There can be little argument that section 36 was enacted for the purpose of that an *aged or terminally ill* plaintiff would be able to participate in the trial of his or her case and be able to realize redress upon the claim asserted. Such a preference is not only necessary to assure a party’s peace of mind that he or she will live to see a particular dispute brought to resolution but it can also have substantive consequences. The party’s presence and ability to testify in person and/or assist counsel may be critical to success. In addition, the nature of the ultimate recovery can be adversely affected by a plaintiff’s death prior to judgment.” (*Id.* at p. 532, italics added.)

Ruling

For the reasons discussed above, the Court **GRANTS** Plaintiffs’ motion for preference. Counsel should appear (Zoom okay) to discuss scheduling and possible trial dates, as well as intervening ADR.

13. 9:00 AM CASE NUMBER: C25-03308
CASE NAME: RAMONA FICKES VS. GHC OF WALNUT CREEK, LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: GHC OF WALNUT CREEK, LLC
TENTATIVE RULING:

Before the Court is a petition to compel arbitration, filed by defendants GHC of Walnut Creek, LLC, dba Walnut Creek Skilled Nursing and Rehabilitation Center; Life Generations Healthcare, LLC; and Thomas Olds, Jr.

For the reasons set forth below, the Court **denies** the Petition.

Background

Ramona May-Fickes entered into the care of Walnut Creek Skilled Nursing and Rehabilitation Center on August 8, 2024. (Complaint, ¶ 22.) Ramona’s admission forms and arbitration agreement were completed and executed by her nephew, plaintiff Ronald Laurence. (Videon Decl. ISO Petition, ¶ 3.) These were given to him on August 12, 2024, and returned on August 31, 2024. (*Ibid.*)

Plaintiffs allege that around early October 2024, when outside hospice care ceased, the care for Ramona deteriorated. (Complaint, ¶¶ 23-25.) On November 13, 2024, staff at the skilled nursing center noticed a discoloration on Ramona’s right leg that they referred to as a rash. (*Id.* at ¶ 29.) On November 19, 2024, Ramona’s family withdrew her from the skilled nursing facility and took her to an emergency room, where she was diagnosed with ischemic pain in her right foot and critical limb ischemia of the lower right extremity. (*Id.* at ¶¶ 31-34.) She was admitted to the hospital that same day and on November 27, 2024, the hospital discharged her to her home with hospice care, and she passed away at home on January 24, 2025. (*Id.* at ¶¶ 35-39.)

On November 12, 2025, the operative complaint in this matter was filed (the “Complaint”). It alleges claims on behalf of Ramona May Fickes, Ronald Laurence (Ramona’s nephew), and Dolly Ryan (Ramona’s sister). Ronald Laurence is pursuing the claims belonging to the decedent, Ramona May Fickes, as her successor-in-interest. The Complaint alleges causes of action for: (1) elder neglect; (2) elder neglect [enhance remedies]; (3) negligence; (4) fraud [constructive]; (5) tort per se [Penal Code § 368]; (6) intentional infliction of emotional distress; (7) violation of the Patient’s Bill of Rights; and (8) wrongful death. Of those claims, the only one being pursued by Ronald Laurence and Dolly Ryan, in their individual capacities, is the wrongful death claim. All other claims are being pursued on Ramona’s behalf by Ronald Laurence.

Legal Standard

“Under both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate.” (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293-94; see also *Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219-20.) California law determines the answer to this threshold question. (*Ibid.*) Mutual assent, or consent, of the parties is essential to the existence of a contract, and consent is not mutual, unless the parties all agree upon the same thing in the same sense. (*Ibid.*, see also Civ. Code, §§ 1550, 1580, 1565.) “Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. (*Ibid.*; see also *Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.)

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.)

Analysis

Defendants argue that the arbitration agreement in this matter should be enforced because it was executed by plaintiff Ronald Laurence on behalf of himself and Ramona, due to a power of attorney. (Petition, pp. 5-6.) Defendants further argue that arbitration should be ordered here because the agreement clearly applies to the dispute in question. (*Id.* at pp. 6-7.) Finally, Defendants argue that this action, including discovery, is to be stayed pending resolution of the Petition. (*Id.* at p. 7.)

In opposition, Plaintiffs argue that Defendants misstate the law regarding the purported policy favoring arbitration as it should be treated similar to evaluation of any other contract. (MPA ISO Opposition, p. 5.) They also argue that Defendants have not shown a valid agreement to arbitrate for Ramona Fickes due to their being no valid power of attorney (“POA”) at the time Ronald Laurence signed. (*Id.* at pp. 5-7.) Further, Plaintiffs assert Ronald Laurence had no ostensible authority to bind Ramona Fickes. (*Id.* at pp. 7-8.) Plaintiffs argue that the Petition should also be denied because the agreement is unconscionable. (*Id.* at pp. 9-13.) Plaintiffs additionally argue that the Court should deny Petition due to Code of Civil Procedure § 1281.2, in light of Ronald Laurence and Dolly Ryan’s claims not being subject to arbitration and that Ronald Laurence did not sign in his individual capacity. (*Id.* at pp. 13-18.)

On reply, Defendants argue that the POA was valid and that Ronald Laurence is bound arbitrate his wrongful death claim. (Reply, pp. 7-9.) They further argue that the arbitration agreement is not

unconscionable—procedurally or substantively. (*Id.* at pp. 9-15.) Finally, they argue that the Court lacks discretion to invoke CCP § 1281.2(c), to deny arbitration and that the Court should stay any portion of the matter that is not compelled to arbitration. (*Id.* at pp. 15-18.)

“Under both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate.” (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293-1294; see also *Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219-1220.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC*, (2012) 55 Cal.4th 223, 236.)

Dolly Ryan

With respect to Dolly Ryan’s wrongful death claim against Defendants, Defendants do not state that she has signed any sort of arbitration agreement or that anyone has signed one on her behalf. Thus, Defendants have not met their burden of showing the existence of an arbitration agreement between Dolly Ryan and Defendants. The Petition to compel arbitration will be DENIED with respect to plaintiff Dolly Ryan.

Ramona May Fickes

Here, the arbitration agreement for Ramona May Fickes was signed by her nephew Ronald Laurence. (Kevin Eng Decl., ¶ 2, Exh. B.) His authority to sign on behalf of his aunt comes from a POA that Romona May Fickes signed that gave Ronald such authority as a POA is required in situations like this where a relative signs on behalf of an elderly relative for the sort of care at issue here. However, the POW is a Springing Durable Power of Attorney, and it states that the POA does not “become effective” until her “incapacity.” (Kevin Eng Decl., ¶ 2, Exh. B. p. 1.) The determination of incapacity is governed by clause 2, and states that:

The determination of whether I have become incapacitated or disabled so that I am not able to manage my financial affairs shall be made in writing by one licensed physician. In the event that a licensed physician has made a written determination that I have become incapacitated or disabled and am not able to manage my own financial affairs, the written statement shall be attached to the original of this durable power of attorney.

(Kevin Eng Decl., ¶ 2, Exh. B, clause 2.)

Here, there appears to be no such determination to have been made, as the POA attached to the declaration of Kevin Eng and provided to this Court does not have such a physician’s statement attached to it and Defendants further do not state that any such determination was made. Instead, they offer some notes made by non-physicians that relate to “dementia” and “chronic intermittent confusion,” which appear to come from an LVN. Notably, these notes do not address what the POA requires, which is “a written determination that [Ramona May Fickes] [has] become incapacitated or disabled and am not able to manage my own financial affairs. . .” (Kevin Eng Decl., ¶ 2, Exh. B. p. 1.) Having dementia or chronic intermittent confusion as noted by a licensed vocational nurse does not satisfy a requirement that a *physician make a written determination* that one has become “incapacitated” or “disabled” and is “unable to manage” their own financial affairs.

Defendants are aware of the importance of the POA in binding Ramona May Fickes to a document

signed by Ronald Laurence, as they have provided it, authenticated it, and offered arguments as to why the POA without the physician's written statement attached is sufficient. However, the Court concludes that based on the above, Defendants have not met their burden of showing a binding contract between Ramona May Fickes and Defendants because the POA they have provided is insufficient for Ronald to bind Ramona without Defendants being able to show that the effective date of the POA was triggered at the time Ronald executed it. The Petition to compel arbitration will be DENIED with respect to the claims of Ramona May Fickes.

Ronald Laurence

With respect to Ronald Laurence, Defendants assert that he is bound to arbitrate the wrongful death claim asserted by him in his individual capacity because the arbitration agreement he signed on behalf of Ramona May Fickes, which was not valid due to the POA having not yet spring, also contained a clause stating that:

This Agreement shall be binding for any dispute, except for disputes pertaining to collections or evictions brought by the parties hereto. This Agreement is binding on all parties, including the Resident's representatives, executors, family members and heirs. *The Resident's representatives, agents, executors, family members, successors in interest and heirs who execute this Agreement below on the 'Resident Representative/Agent Signature' line are doing so not only in their representative capacity for the Resident, but also in their individual capacity and thus agree that any claims brought individually by the Resident's representatives, agents, executors, family members, successors in interest and heirs are subject to binding arbitration.* This Agreement may be rescinded by written notice within thirty (30) days of signature."

(Sharon Videion Decl., ¶ 3, Exh. A, Article 4.)

Here, the Court need not address in detail the existence of an arbitration agreement between Defendants and Ronald Laurence because even assuming arguendo that there is an agreement, there is a problem with Defendants' Petition here.

Plaintiffs cite *Lopez v Bartlett Care Center* (2019) 39 Cal.App.5th 311, to support their argument that Ronald Laurence's wrongful death claims are not arbitrable and are unconscionable. (MPA ISO Opposition, pp. 12:17-26, 15:10-12.) That case dealt with the *exact same arbitration clause that is at issue here* and the court of appeal there, in a published opinion binding on this Superior Court, affirmed that the arbitration agreement was unenforceable due to being procedurally and substantively unconscionable. (*Lopez v Bartlett Care Center* (2019) 39 Cal.App.5th 311, 320-22, fn. 2 [clause 4 is verbatim the same in the agreement here as in the agreement in *Lopez*].) Every issue the *Lopez* Court identified with the agreement in that case is present with the agreement in this case. (*Ibid.*) In addition to both having an identical article 4, it appears that the arbitration agreement in *Lopez* is entirely the same as the one in the present case ("a two-page document entitled 'RESIDENT-FACILITY ARBITRATION AGREEMENT. . . the arbitration agreement itself is only two pages and has 'bold font and red ink. . .' signature block designated 'Resident Representative/Agent Signature . . .'" Article two requiring arbitration for "any action for injury or death arising from negligence, intentional tort and/or statutory causes of action") (*Id.* at 311-322 [Interestingly, the law firm representing Defendants in this instant matter also represented the Defendants in *Lopez*].) Thus, all

of the reasoning in *Lopez* applies equally to the instant matter currently before this Court.

The agreement is procedurally unconscionable because the agreement did not identify Ronald Laurence as being a party to the agreement and Article Four, which requires Ronald to arbitrate all claims in his individual capacity, was inserted into the arbitration agreement without headings or highlighting. (*Lopez, supra*, 39 Cal.App.5th at pp. 320-321, fn. 2; Kevin Eng. Decl., ¶ 2, Exh. B.) For substantive unconscionability, the agreement lacks mutuality “because it requires residents to arbitrate those claims they are most likely to bring against the Facility (medical malpractice, personal injury, elder abuse) while allowing the Facility to pursue in court the actions the Facility is most likely to bring against residents (evictions and collections).” (*Lopez, supra*, 39 Cal.App.5th at p. 321; Kevin Eng. Decl., ¶ 2, Exh. B.) The agreement in this matter contains every flaw that the *Lopez* Court identified. (*Lopez, supra*, 39 Cal.App.5th at p. 321, fn. 2; Kevin Eng. Decl., ¶ 2, Exh. B.) With a published and binding Court of Appeal decision precisely on point, this Court is required to rule in accordance with this binding authority. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455 [“Under the doctrine of stare decisis, all tribunals exercising inferior jurisdiction are required to follow decisions of courts exercising superior jurisdiction. Otherwise, the doctrine of stare decisis makes no sense. The decisions of this court are binding upon and must be followed by all the state courts of California. Decisions of every division of the District Courts of Appeal are binding upon all the justice and municipal courts and upon all the superior courts of this state, and this is so whether or not the superior court is acting as a trial or appellate court. Courts exercising inferior jurisdiction must accept the law declared by courts of superior jurisdiction. It is not their function to attempt to overrule decisions of a higher court.”].)

The Opposition offers argument on *Lopez* in multiple places and although Defendants’ reply brief spends seven pages on unconscionability it does not cite, address, or offer argument on *Lopez v Bartlett Care Center* (2019) 39 Cal.App.5th 311. (MPA ISO Opposition, pp. 12:17-26, 15:10-12; Reply, pp. 9-15.)

Ruling

For the reasons discussed above, the Court **DENIES** Defendants’ Petition to Compel Arbitration.

14. 9:00 AM CASE NUMBER: C25-03772
CASE NAME: RECLAMATION DISTRICT NO. 800 VS. ALL PERSONS INTERESTED IN THE MATTER OF THE BENEFIT ASSESSMENT ADOPTED PURSUANT TO RESOLUTION NO. 25-13
HEARING IN RE: COMPLAINT FOR VALIDATION
FILED BY: RECLAMATION DISTRICT NO. 800
TENTATIVE RULING:

This is an action to validate a special benefit assessment by a public agency under Code of Civil Procedure §§ 860 to 870.5. The action and summons were properly published in accordance with § 861. No one has appeared to oppose validation, and default was entered.

Accordingly, **judgment will be granted** in favor of the plaintiff.

15. 9:00 AM CASE NUMBER: MSC21-00588
CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION

***HEARING ON MOTION IN RE: BIFURCATE**

FILED BY: NORCAL RENTAL GROUP, LLC

TENTATIVE RULING:

This case is set for jury trial starting July 6. This motion to bifurcate the trial needs to be handled by the trial judge (Judge Campins), who is out at this time. The motion is therefore **continued** to a special-set on Friday, June 26, at 1:30 p.m. in Department 10. That is the earliest available date, with a view to enabling the parties to prepare for the proper scope of trial.

The Court also takes note of the pendency of a DCA writ petition challenging the Court's recent good-faith-settlement ruling. If that petition is not summarily denied, the parties need to consider whether its pendency will have any effect on the viability of the present trial date.

The Court (Judge Treat) also draws attention to the point that his son was, until recently, an associate in the law firm representing American Equipment Company. He has no information that his son worked on this case.

16. 9:00 AM CASE NUMBER: N26-0423

CASE NAME: RE MORGAN BLACK

***HEARING ON MINOR'S COMPROMISE PETITION FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION OF PROCEEDS OF JUDGMENT FOR MINOR OR PERSON W/DISABILITY FILED BY KIMBERLY JOHNSON**

FILED BY:

TENTATIVE RULING:

The proposed minor's compromise is **approved**.

17. 9:00 AM CASE NUMBER: N26-0758

CASE NAME: LEANNE BEAN VS. STEVE GORDON, DIRECTOR OF DMV

HEARING ON PETITION FOR WRIT OF MANDATE

TENTATIVE RULING:

This is a petition for administrative mandate, challenging the suspension of the petitioner's driver's license. The Court can find no record in the file that the petition has been served on DMV. Accordingly, the petition is **dismissed** for lack of timely service. Petitioner has also not filed the administrative record.

18. 9:01 AM CASE NUMBER: C24-02221

CASE NAME: JOHN ROE A.H. VS. WEST CONTRA COSTA UNIFIED SCHOOL DISTRICT, PUBLIC ENTITY

***HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH SUBPOENA FOR PROD OF BUSINESS RECORDS**

FILED BY: ROE A.H., JOHN

TENTATIVE RULING:

This is a lawsuit over alleged failure of a school district and related defendants to protect students and prevent sexual abuse by a teacher. The teacher in question has been criminally convicted and

given an extremely heavy sentence.

Plaintiff seeks to enforce a third-party subpoena to the California Commission on Teacher Credentialing for its file concerning the teacher in question.

The motion papers show a clear failure by the moving plaintiff to engage in the meet-and-confer process required for discovery motions. Indeed, the initial motion papers included counsel's declaration (though markedly undetailed and generic) that counsel had attempted meet-and-confer unsuccessfully. When challenged on the truthfulness of that statement by the other side, counsel refiled the declaration with the untrue paragraphs deleted. Such conduct risks serious sanctions.

Be that as it may, it is evident that a more substantial and serious meet-and-confer is called for here. For example, at the time this motion was filed a privilege log had been neither prepared nor requested. The Commission reports that it has prepared one since then. This is not really appropriate on either side. If the Commission made privilege objections and intended to rely on them, it should have prepared and served a privilege log at the time of responding, or it risked having waived the privileges. But likewise, if moving counsel was complaining about the lack of a privilege log, surely the first step should have been to get on the phone and request one – especially since, as the Commission reports, such logs had been requested and produced between the same legal offices in parallel separate lawsuits.

Accordingly, counsel for the moving plaintiff and the Commission are directed to engage in a comprehensive and robust meet-and-confer process now. It may proceed initially in written form if that will help to frame the issues, but unless the initial exchange results in agreement, the process must include meaningful live face-to-face discussion (in a conference room, or by Zoom or the like).

The Commission also points out that plaintiff has filed no Separate Statement as required. As the present briefs frame the issues, a Separate Statement would not have been particularly helpful to the Court, since the briefs debate the issues in something of an all-or-nothing fashion rather than by discussing them one request, document category, or privilege claim at a time. But if the meet-and-confer process reveals that there are particular discrete issues presented -- ("you're not entitled to Category X of documents"; "your privilege claim as to documents Y is inappropriate"; "you should not be making redaction Z") -- then the attorneys should jointly prepare a separate statement that frames discrete, separate issues in a discrete, separate format.

This meet-and-confer process is to commence within the next two weeks, and is to continue as a dialog for as long as it takes to either reach agreement, or conclude with certainty that no agreement can be reached, or a mix of agreement on some points and impasse on others.

If it is necessary to take up all or any part of this motion before the Court again, the parties are encouraged to stipulate to a suitable timetable. To have at least a default deadline in place, however, the Court **continues** this motion to August 13, 2026, at 9:00 a.m. Both sides are to file and serve supplemental briefs (and supporting declarations and papers, and a joint Separate Statement if it will be useful) by July 24.

19. 9:01 AM CASE NUMBER: C24-03254
CASE NAME: MAJERRIS WALKER VS. CITY OF PITTSBURG
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER VERIFIED RESPONSES TO FORM
INTERROGATORIES, SET ONE (NOS. 6.4, 6.5, 6.7)
FILED BY: CITY OF PITTSBURG
TENTATIVE RULING:

This case asserts claims arising out of alleged police brutality. Defendant City moves to compel fuller responses to several interrogatories concerning medical treatment and care.

Plaintiff correctly points out that the motion is defective for not including a Separate Statement, which would have been helpful to the Court. However, plaintiff for his part makes no effort to try to resist the motion one interrogatory/response at a time, and he doesn't seriously try to defend the adequacy of the existing responses. He mainly asks for an opportunity to amend the responses.

Well, okay. He can have such an opportunity, because the Court **grants** the motion to compel in its entirety. Plaintiff must provide full and complete responses to the interrogatories in question, with verifications, by July 10, 2026.

No sanctions are requested.

20. 9:00 AM CASE NUMBER: C23-02420
CASE NAME: RUTH LEVINSON VS. CYNTHIA HO
HEARING ON MOTION TO EXPUNGE LIS PENDENS
FILED BY: CYNTHIA HO
TENTATIVE RULING:

This case was dismissed in March. Still remaining in place, however, is a lis pendens. Defendant Ho moves to expunge it. The motion is unopposed, and it is **granted**.

21. 9:00 AM CASE NUMBER: C25-00957
CASE NAME: EBMUD v. CHANDLER
HEARING ON MOTION TO DISMISS AND FOR SANCTIONS
FILED BY: JOHN B. CHANDLER
TENTATIVE RULING:

Defendant John B. Chandler's "Motion to Dismiss Pursuant to CCP § 430.10 and to Hold [Plaintiff] EBMUD in Civil Contempt," deemed a motion for judgment on the pleadings, is **denied**. Defendant's request for civil contempt and attorney fees is likewise **denied**.

Background

EBMUD owns a recorded 1983 easement consisting of a 20-foot-wide strip of land running across private property behind 16 Roberts Court in Contra Costa County. The easement traverses San Ramon Creek, descending one steep hillside, crossing the creek bed, and climbing the hillside on the other

side. Although the underlying land remains in private ownership, the easement gives EBMUD the legal right to install, operate, and maintain a water pipeline within that 20-foot corridor. In 1984, EBMUD exercised that right by constructing a 12-inch steel water main along the easement, encasing the pipe in concrete where it crosses the creek to protect it from the forces of the waterway. That pipeline provides water service to downstream customers and fire hydrants on the far side of the creek. (Complaint ¶¶ 6-7.)

This action arises from an unpermitted private sewer lateral that was built on top of that water main, inside EBMUD's easement, and that has now damaged the pipeline. Defendant John B. Chandler is the former owner of 16 Roberts Court and is alleged to have constructed the encroaching sewer lateral in or around 2008 or 2009, without calling USA North 811 (the "call before you dig" service that locates underground utilities), and without obtaining the streambed alteration permits required for work over San Ramon Creek. Defendants Matt Kauffman and Christy Kauffman now own 16 Roberts Court. (Compl. ¶ 3.)

In April 2022, EBMUD found a small leak in its water pipeline and traced it to a spot directly underneath one of Chandler's concrete support piers. The leak got worse that month. An internal inspection showed the top of the steel pipeline was damaged where one of the concrete piers sat on it. EBMUD was required to build a temporary wooden bridge across the creek to run an 8-inch bypass hose, shut down the damaged 12-inch main, and coordinate with the California Department of Fish & Wildlife on bridge placement to avoid harming the creek. (Compl. ¶ 11.)

On April 4, 2025, EBMUD filed this action for trespass, private and public nuisance and negligence against Chandler and the Kauffmans. EBMUD seeks to recover the costs of investigation, construction of the temporary pipeline, design and development of plans for a new pipeline, and agency permitting costs. EBMUD estimates its damages to be \$647,000. (Compl. ¶ 15.) EBMUD does not seek removal of the lateral or injunctive relief. Instead, it agreed to allow the Kauffmans to maintain the lateral in place and relocated its own pipeline within the easement to accommodate it. (Compl. ¶¶ 12-13.)

Chandler answered the complaint on July 17, 2025. On February 4, 2026, Chandler filed the present motion to dismiss and to hold EBMUD in contempt. Chandler contends that EBMUD's claims were discharged by operation of a May 12, 2010 order issued in Chandler's Chapter 7 bankruptcy proceeding (the Discharge Order). (Chandler's RJN, Exh. B.) Chandler contends that his installation of the sewer lateral in 2008 or 2009 predated his bankruptcy petition by at least a year, such that EBMUD's claims arise from prepetition conduct and were extinguished by the Discharge Order.

On April 30, 2026, EBMUD filed an opposition to the motion. On May 7, 2026, Chandler filed a reply. In its own research, the Court identified *In re Beezley* (9th Cir. 1993) 994 F.2d 1433, which addresses the dischargeability of unscheduled debts in no-asset Chapter 7 cases, and appeared potentially relevant to the notice analysis. The Court requested supplemental briefing from both parties on its relevance. Both parties submitted supplemental briefs on May 29, 2026.

Meet and Confer

The parties did not meet and confer as contemplated by Code of Civil Procedure § 439. Chandler sent EBMUD a letter on November 5, 2025 contending that its claims violated the discharge injunction and

requesting dismissal. EBMUD did not respond. (Schwartz Decl., Exh. C, ¶ 4.)

Because the court is deeming the motion a motion for judgment on the pleadings, the applicability of § 439's meet and confer requirement is uncertain. Failure to meet and confer is not grounds to grant or deny a motion in any event. (Code Civ. Proc., § 439(a)(4).) The Court decides the motion on the merits.

Request for Judicial Notice

Defendant requests judicial notice of the Voluntary Petition (Exh. A) and the Discharge of Debtor and Final Decree (Exh. B) filed in the bankruptcy court proceeding *In re John B. Chandler*, U.S. Bankruptcy Court, Northern District of California, Case No. 10-41450 RN 7. The court takes judicial notice of the authenticity of these documents and the legal effect of their language.

Legal Standards

Chandler has filed a motion to dismiss. That procedural vehicle is not recognized in these circumstances, but the motion may be treated as a nonstatutory motion for judgment on the pleadings. (*Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5.)

"[A] motion for judgment on the pleadings is equivalent to a demurrer." (*Ibarra v. Chuy & Sons Labor, Inc.* (2024) 102 Cal.App.5th 874, 881.) A court may sustain a demurrer when facts subject to judicial notice establish an affirmative defense. (*Shine v. Williams-Sonoma, Inc.* (2018) 23 Cal.App.5th 1070, 1076 [res judicata].) A demurrer based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense, not merely that it might be barred. (*Flores v. Kmart Corp.* (2012) 202 Cal.App.4th 1316, 1325 (Flores).)

Generally, a Chapter 7 bankruptcy discharge order "operates as an injunction against the commencement or continuation of an action, the employment of process, or an act, to collect, recover or offset any such debt as a personal liability of the debtor, whether or not discharge of such debt is waived." (11 U.S.C. § 524(a)(2).)

State and federal courts have "concurrent jurisdiction to decide whether a claim within a discharge order is a discharged debt." (*Flores, supra*, 202 Cal.App.4th at p. 1325.) "[A] state court may consider the applicability of a bankruptcy discharge when it is raised as a defense to an action." (*Id.* at p. 1326.)

Ruling on the Motion for Judgment on the Pleadings

This motion requires detailed and complicated legal analysis. Before getting into those weeds, however, it may be stated up front what the basic, common-sense problem with Chandler's theory is. Under his theory, a bankruptcy filed and closed years ago – with no hint of notice to EBMUD either of Chandler's trespass, or of the bankruptcy proceeding – can nevertheless operate, in practical effect, to grant Chandler a *permanent* title right to occupy a position on top of EBMUD's pipeline, even when that occupation in fact results in actual physical damage to EBMUD's pipeline long after the bankruptcy is concluded. To state the proposition is to reject it. It would require substantial legal gymnastics for Chandler to validate this illogical and unfair result. He does not get there.

Chandler argues that EBMUD's claims are barred under 11 U.S.C. § 524(a) because his bankruptcy discharge operates to bar any suit against him based on his prepetition installation of the sewer lateral in 2008 or 2009. He contends that the claims "arose" prepetition under the Ninth Circuit's "fair contemplation" test. Citing *In re Ben Nye Co., Inc.*, 2025 Bankr. LEXIS 1451 (B.A.P. 9th Cir. June 17, 2025), and *Goudelock v. Sixty-01 Association of Apartment Owners* (9th Cir. 2018) 895 F.3d 633, 638, Chandler asserts that a claim arises prepetition, and is therefore subject to discharge, if the claimant could fairly contemplate it before the bankruptcy filing, even if the claim has not yet accrued under state law and even if the claimant has not yet discovered it.

Applying that test, Chandler asserts that EBMUD's claims were fairly contemplable in 2010 because (1) he installed the sewer lateral in 2008 or 2009, before he filed his petition; (2) the lateral was conspicuous, sitting "on top of" EBMUD's pipeline and requiring above-ground piers across the creek; and (3) As an easement holder, EBMUD had a duty under Civil Code § 845 to maintain and inspect its easement. Chandler concludes from this that EBMUD "reasonably knew" of the encroachment in 2010, and that any claim arising from the lateral installation was therefore fairly contemplable and barred by the Discharge Order as a matter of law. On that basis, Chandler asks the Court not only to dismiss EBMUD's complaint, but also to hold EBMUD in civil contempt under *Taggart v. Lorenzen* (2019) 587 U.S. 554, and to award him attorney's fees and costs for EBMUD's alleged violation of the discharge injunction.

EBMUD contends that a discharge defense fails. First, EBMUD argues that its trespass and nuisance claims were not discharged because Chandler failed to list EBMUD as a creditor in his Chapter 7 schedules and did not give EBMUD notice of the bankruptcy proceedings. 11 U.S.C. § 523(a)(3)(A) provides that a debt owed to a creditor who is neither scheduled nor noticed in time to permit timely filing of a proof of claim is excepted from discharge, unless the creditor had actual knowledge of the bankruptcy.

Second, EBMUD argues its claims are based on a continuing trespass and nuisance that survive any bankruptcy discharge. Under *O'Loughlin v. County of Orange* (9th Cir. 2000) 229 F.3d 871, 875, post-discharge violations are actionable even when they stem from pre-discharge conduct, because a bankruptcy fresh start "does not mean a continuing license to violate the law." EBMUD argues the sewer lateral Chandler installed continues to occupy its easement and continues to interfere with its use and enjoyment of that easement. Because the condition is abatable, EBMUD claims it constitutes a continuing nuisance and trespass under California law.

As to Chandler's separate request for civil contempt, EBMUD argues this Court lacks authority to entertain the request because a motion to enforce a discharge injunction must be brought in the bankruptcy court that issued the order. (*Barrientos v. Wells Fargo Bank, N.A.* (9th Cir. 2011) 633 F.3d 1186, 1188-1189; *Walls v. Wells Fargo Bank, N.A.* (9th Cir. 2002) 276 F.3d 502, 509.) Even if jurisdiction existed, EBMUD argues Chandler cannot satisfy the standard for contempt, which requires "no objectively reasonable basis for concluding that the creditor's conduct might be lawful under the discharge order." (*Taggart, supra*, 587 U.S. at p. 560.)

On reply, Chandler argues that only the bankruptcy court has authority to interpret and enforce the scope of the discharge injunction. He further argues that EBMUD was an unknown creditor not entitled to actual notice because at the time of his 2010 petition no leak had been identified, no damage was

known, and EBMUD did not discover the encroachment until April 2022. Citing *Chemetron Corp. v. Jones* (3d Cir. 1995) 72 F.3d 341, 347 (Chemetron), he contends that a debtor's duty extends only to creditors reasonably ascertainable from the debtor's books and records, and that EBMUD's claim was too speculative to require notice.

Chandler further argues that EBMUD's position is internally contradictory. 11 U.S.C. § 101(5) of the Bankruptcy Code defines a claim broadly to include any right to payment, whether or not reduced to judgment, liquidated, unliquidated, fixed, contingent, matured, unmatured, disputed, or undisputed. If EBMUD's rights were concrete enough to entitle it to constitutional notice, meaning it was a known creditor with an ascertainable claim, then it necessarily possessed a contingent prepetition claim within the meaning of § 101(5) that was subject to discharge. Conversely, if the claim was too speculative and undeveloped to exist prepetition because no leak had been identified, no damage had manifested, and no dispute existed as of the petition date, then EBMUD was merely an unknown creditor not entitled to actual notice, and the discharge would apply regardless.

Finally, Chandler argues that the continued presence of the sewer lateral is not a continuing tort but merely a continuing effect of a single completed prepetition act, and does not give rise to new post-petition claims.

Discharge in bankruptcy is an affirmative defense, and Chandler bears the burden of establishing it on the face of the complaint and judicially noticeable materials. Chandler has not carried that burden.

Even assuming Chandler could establish that EBMUD's claims arose prepetition under the fair contemplation test and constituted a dischargeable claim within the broad meaning of 11 U.S.C. § 101(5), he has not established on this record that the claims were in fact discharged.

11 U.S.C. § 523(a)(3)(A) provides in pertinent part:

(a) A discharge under section 727 . . . does not discharge an individual debtor from any debt—

* * *

(3) neither listed nor scheduled under section 521(a)(1) of this title . . . in time to permit—

(A) if such debt is not of a kind specified in paragraph (2), (4), or (6) of this subsection, timely filing of a proof of claim, unless such creditor had notice or actual knowledge of the case in time for such timely filing . . .

(11 U.S.C. § 523(a)(3)(A).)

Under § 523(a)(3)(A), a debt is not discharged where the debtor fails to schedule or list it and the creditor does not have notice or actual knowledge of the case in time to file a proof of claim.

The judicially noticed documents establish that EBMUD was not listed as a creditor in Chandler's Chapter 7 petition, and the Discharge Order does not identify EBMUD. The complaint contains no allegation that EBMUD received notice or had actual knowledge of the bankruptcy case, and Chandler identifies no judicially noticeable fact establishing such notice or knowledge.

Chandler argues EBMUD was an unknown creditor and therefore not entitled to actual notice. Constitutional “[d]ue process requires notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections.” (*United Student Aid Funds, Inc. v. Espinosa* (2010) 559 U.S. 260, 272.) In bankruptcy cases, what constitutes reasonably calculated notice to satisfy due process is different for known and unknown creditors. (*Chemetron, supra*, 72 F.3d at 347.)

The Supreme Court has explained that a known creditor is one whose identity is either actually known or “reasonably ascertainable by the debtor.” (*Tulsa Professional Collection Serv., Inc. v. Pope* (1998) 485 U.S. 478, 490.) An unknown creditor is one whose “interests are either conjectural or future or, although they could be discovered upon investigation, do not in due course of business come to knowledge [of the debtor].” (*Mullane v. Central Hanover Bank & Trust Co.* (1950) 339 U.S. 306, 317.) Known creditors are entitled to actual written notice of a debtor’s bankruptcy filing. (*Chemetron*, 72 F.3d at 345.) Notification by publication will generally suffice for unknown creditors. (*Id.*)

The parties dispute whether EBMUD was a known or unknown creditor. Chandler has not established on the face of the complaint or judicially noticeable matter that EBMUD was an unknown creditor whose identity was not reasonably ascertainable at the time he filed his bankruptcy petition. EBMUD’s easement was recorded in 1983 in the Contra Costa County Recorder’s Office (Compl. ¶ 6 and Exh. A), which gave Chandler constructive notice of the easement’s existence, boundaries, and purpose as a corridor for an underground water pipeline. The complaint alleges that Chandler installed the sewer lateral and its supporting concrete piers within EBMUD’s recorded easement and on top of EBMUD’s underground pipeline. (Compl. ¶ 8.) Whether Chandler actually knew about EBMUD’s easement when he installed encroaching structures within it, and if so whether his awareness made EBMUD’s potential claim for trespass and nuisance known to him at the time of his bankruptcy petition, are fact questions that cannot be resolved on this record.

In his supplemental brief, Chandler argues that *In re Beezley* (9th Cir. 1993) 994 F.2d 1433 requires dismissal. *Beezley* held that § 523(a)(3)(A) does not apply in a no-asset, no-bar-date Chapter 7 case. The provision excepts from discharge only debts where the creditor was not scheduled in time to permit timely filing of a proof of claim. Where no claims bar date was ever set, there is no deadline to miss, and the provision is never triggered. (*Id.* at p. 1434.) Because Chandler’s was a no-asset case with no bar date, Chandler argues, EBMUD’s lack of notice does not preserve its claims from discharge.

EBMUD responds that *Beezley* is not binding on this Court, that other federal circuits have reached the opposite conclusion, and that § 523(a)(3)(B)’s exception for intentional torts survives *Beezley* in any event. On that last point the court agrees. *Beezley* itself is clear that a debt of a type covered by § 23(a)(3)(B) is not discharged and remains non-dischargeable. (*Id.* at p. 1434.) The complaint alleges that Chandler acted willfully, intentionally, and without consent in installing the sewer lateral within EBMUD’s recorded easement and on top of its pipeline. (Compl. ¶ 17.) Whether EBMUD can prove that allegation is not a question for demurrer. Chandler has not established on the face of the complaint that § 523(a)(3)(B) does not apply.

In addition, the judicially noticed documents do not establish that this was in fact a no-asset case. As EBMUD points out, the petition does not list insurance policies or other assets that may have been

available to creditors. The Court cannot conclude from the petition schedules or Discharge Order alone that no assets existed.

A demurrer based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense, not that it might be barred. (*Flores, supra*, 202 Cal.App.4th at p. 1325.) Because the discharge defense is not necessarily established on the face of the complaint or judicially noticeable materials, the motion for judgment on the pleadings is denied. The Court does not reach EBMUD's argument that its claims are independently preserved under the continuing violation doctrine.

Ruling on the Request for Sanctions

The request for civil contempt sanctions is denied. Assuming the request is properly before this Court, Chandler has not established that EBMUD's claims were discharged, and therefore cannot show EBMUD violated any discharge injunction. The request for attorney fees and costs, which is predicated on a contempt finding, is also denied.

Conclusion

For the foregoing reasons, the motion is **denied**. EBMUD shall prepare the order and serve and file notice of entry of order.